IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No.308

CP(CAA)/37(AHM)2021
in
CA(CAA)35 of 2021

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Rama Crimpers Pvt Ltd **.....Applicant**
Rama Polysynth Pvt Ltd
Rama Synsilk Mills Pvt Ltd
Jagdish Silk Mills Pvt Ltd
Swati Processors Pvt Ltd
Rama Tradelink Pvt Ltd
Harmony Logistics Pvt Ltd
Sunflower Infrastructure Pvt Ltd
Lifelong Infrastructure Pvt Ltd
Lion Organisers Pvt Ltd
Face Developers Pvt Ltd

Order delivered on 06/06/2023

Coram:

Mr. Deep Chandra Joshi, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

ORDER

The case is fixed for pronouncement of order.

The order is pronounced in open Court vide separate sheet.

-SD- -SD-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
(COURT NO. II)

CP (CAA) 37/AHM/2021

IN

CA (CAA) 35/AHM/2021

(In the matter of Sections 230(1) & 232 of the Companies Act, 2013)

In the matter of Scheme of Merger

OF

RAMA CRIMPERS PRIVATE LIMITED
(Petitioner Company No. 1/ Transferor Company No. 1)

AND

RAMA POLYSYNTH PRIVATE LIMITED
(Petitioner Company No. 2/ Transferor Company No. 2)

AND

RAMA SUNSILK MILLS PRIVATE LIMITED
(Petitioner Company No. 3/ Transferor Company No. 3)

AND

JAGDISH SILK MILLS PRIVATE LIMITED
(Petitioner Company No. 4/ Transferor Company No.4)

AND

SWATI PROCESSORS PRIVATE LIMITED
(Petitioner Company No. 5/ Transferor Company No. 5)

AND

RAMA TRADELINK PRIVATE LIMITED
(Petitioner Company No. 6/ Transferor Company No. 6)

AND

HARMONY LOGISTICS PRIVATE LIMITED
(Petitioner Company No. 7/ Transferor Company No. 7)

AND

SUNFLOWER INFRASTRUCTURE PRIVATE LIMITED
(Petitioner Company No. 8/ Transferor Company No. 8)

AND

LIFELONG INFRASTRUCTURE PRIVATE LIMITED
(Petitioner Company No. 9/ Transferor Company No. 9)

AND

LION ORGANISERS PRIVATE LIMITED
(Petitioner Company No.10/ Transferor Company No. 10)

WITH

FACE DEVELOPERS PRIVATE LIMITED
(Petitioner Company No. 11/ Transferee Company)

And

Their Respective shareholders and Creditors

Order Pronounced on: 06/06/2023

Coram:
MR. DEEP CHANDRA JOSHI
HON'BLE MEMBER (JUDICIAL)
MR. AJAI DAS MEHROTRA,
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

In the matter of:

Rama Crimpers Private Limited
(CIN: U17119GJ1993PTC018908)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,
Surat -395001, Gujarat, India

… Petitioner Company No. 1/
Transferor Company No. 1

Rama Polysynth Private Limited
(CIN: U17119GJ1993PTC019418)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,
Surat -395001, Gujarat, India

… Petitioner Company No. 2/
Transferor Company No. 2

Rama Synsilk Mills Private Limited
(CIN: U17116GJ1993PTC020089)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,
Surat -395001, Gujarat, India

… Petitioner Company No. 3/
Transferor Company No. 3

Jagdish Silk Mills Private Limited
(CIN: U17116GJ1994PTC022390)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,
Surat -395001, Gujarat, India

… Petitioner Company No. 4/
Transferor Company No. 4

Swati Processors Private Limited
(CIN: U17110GJ1996PTC029609)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,
Surat -395001, Gujarat, India

… Petitioner Company No. 5/
Transferor Company No. 5

Rama Tradelink Private Limited
(CIN: U51909GJ2002PTC040705)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,
Surat -395001, Gujarat, India

… Petitioner Company No.6/
Transferor Company No. 6

Harmony Logistics Private Limited
(CIN: U63090GJ2005PTC106253)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,
Surat -395001, Gujarat, India

… Petitioner Company No. 7/
Transferor Company No. 7

Sunflower Infrastructure Private Limited
(CIN: U45200GJ2010PTC062344)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,
Surat -395001, Gujarat, India

… Petitioner Company No. 8/
Transferor Company No. 8

Lifelong Infrastrucutre Private Limited
(CIN: U45201GJ2011PTC063873)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,

Surat -395001, Gujarat, India

… Petitioner Company No. 9/
Transferor Company No. 9

Lion Organisers Private Limited
(CIN: U45201GJ2011PTC063872)
Registered Office at:
Plot -65, 1st floor, Subhash Nagar Society,
Ghod Dod Road, Nr. Ram Chowk,
Surat -395001, Gujarat, India

… Petitioner Company No. 10/
Transferor Company No. 10

Face Developers Private Limited
(CIN: U45201GJ2011PTC063825)
Registered Office at:
Block No. 232, Nr. Molvan Limdi Chokdi,
At Post: Limbodara, Village: Karanj,
Taluka: Mandvi, Surat-394160, Gujarat, India.

… Petitioner Company No. 11/
Transferee Company

For the Petitioners : Mr. Kunjal Dalal, PCS

ORDER

1. This joint petition has been filed by the Petitioner Companies under Sections 230 (1) & 232 of the Companies Act, 2013 (for brevity 'the Act') seeking sanction of the scheme of merger (hereinafter called the “Scheme”) of the Rama Crimpers Private Limited (for brevity “Transferor Company No. 1”), Rama Polysynth Private Limited (for brevity “Transferor Company No. 2), Rama Synsilk Private Limited (for brevity “Transferor Company No.3), Jagdish

Silk Mills Private Limited (for brevity "Transferor Company No. 4"), Swati Processors Private Limited (for brevity "Transferor Company No. 5"), Rama Tradelink Private Limited (for brevity "Transferor Company No. 6"), Harmony Logistics Private Limited (for brevity "Transferor Company No. 7"), Sunflower Infrastructure Private Limited (for brevity "Transferor Company No. 8"), Lifelong Infrastructure Private Limited (for brevity "Transferor Company No. 9") and Lion Organisers Private Limited (for brevity "Transferor Company No. 10") with Face Developers Private Limited (for brevity "Transferee Company") with effect from the 18/01/2021 being the Appointed Date as mentioned in the Scheme.

2. From the records, it is seen that the first motion application seeking directions for dispensation of the meeting of the equity shareholders, secured and unsecured creditors of all the Petitioner Companies was allowed vide order dated 15.06.2021.

3. The 2nd motion joint petition was filed on 26/06/2021 and admitted vide order dated 13/07/2021, issuing Notices to the concerned statutory authorities and also directing publication in the newspapers 'Times Of India' Surat Edition in English and 'Gujarat Mitra' Surat Edition having wide circulation in Surat. The Petitioner Companies have filed respective compliance affidavits.

4. The Regional Director, North Western Region, MCA has filed a common report on 02.11.2021 along with the report of RoC, Ahmedabad. They have sought following directions:

   i) The transferee company to undertake the compliance of section 232(3)(i) of the Companies Act, 2013 and to pay fees accordingly.

   ii) The Transferor Company No. 4 and Transferee Company to comply with directions if any, issued by ROC as regards open charges shown in charge index on MCA-21 Portal.

   iii) The Petitioner companies to comply with direction if any issued by ROC as regards certain violation of Companies Act.

   iv) The petitioner companies to comply the provisions of section 398 and section 232(2)(b) of the Companies Act, 2013 read with Rule 7 of Companies (Registration office and Fees) Rules, 2014.

   v) The petitioner companies to pay legal fees/cost to the central government.

   vi) The petitioner companies to pay necessary stamp duty on transfer of property/assets to the respective authorities before implementation of the scheme.

5. The Official Liquidator, attached with the Hon'ble High Court of Gujarat has filed separate observations for all transferor companies on 01.04.2022, seeking directions as follows:

i) All the Transferor Companies to file its statutory returns, i.e. Annual Return and Balance Sheet as at 17.01.2021 with the Registrar of Companies and place the facts before the Bench.

ii) The Transferee Company to place all the facts of the matter before the Hon'ble Bench that whether the Transferee Company will change its Main Object to carry on the business of all the Petitioner Transferor Companies as the main object of Transferee Company is not resembling with the main object of all the transferor companies.

iii) The Transferor Company No. 2 to place all the facts before the Hon'ble NCLT Bench regarding Purpose for which subsidy taken, how much amount of subsidy utilized, why the remaining amount is not surrendered to the Government and how after amalgamation the said amount of subsidy be utilized for the same purpose for which it is obtained.

iv) The Hon'ble Bench to direct the Transferor Company No. 2 to place the facts for which purpose Rs. 42,40,000/- of the security premium has been utilised and how after utilization the said amount is shown under the head of security premium. Further, Hon'ble Bench also ensure the actual transfer of the said amount of Rs. 42,40,000/- from security premium reserve account of Transferor Company No. 2 to the security premium reserve account of transferee company i.e. necessary documentary evidence like statement of Bank Account in

which the amount of security premium has been kept may be produced before the Hon'ble Bench.

v) The Hon'ble Bench to direct the Transferor Company No. 3 to place the facts for which purpose Rs. 56,00,000/- of the security premium has been utilised and how after utilization the said amount is shown under the head of security premium. Further, Hon'ble Bench also ensure the actual transfer of the said amount of Rs. 56,00,000/- from security premium reserve account of Transferor Company No. 3 to the security premium reserve account of transferee company i.e. necessary documentary evidence like statement of Bank Account in which the amount of security premium has been kept may be produced before the Hon'ble Bench.

vi) The Transferor Company No. 4 has submitted vide reply dated 27.12.2021 that the release deed is executed by the bank only when the total liability of the group comprising of various entity is repaid in full. In this regard, direct the Transferor Company No. 4 to place all the relevant facts along with documentary evidence before the Hon'ble Bench.

vii) The Hon'ble Bench to direct the Transferor Company No. 6 to place the facts for which purpose Rs. 1,36,40,000/- of the security premium has been utilised and how after utilization the said amount is shown under the head of security premium. Further, Hon'ble Bench also ensure the actual transfer of the said amount of Rs. 1,36,40,000/- from

security premium reserve account of Transferor Company No. 6 to the security premium reserve account of transferee company i.e. necessary documentary evidence like statement of Bank Account in which the amount of security premium has been kept may be produced before the Hon'ble Bench.

viii) The Hon'ble Bench to direct the Transferor Company No. 7 to place the facts for which purpose Rs. 28,00,000/- of the security premium has been utilised and how after utilization the said amount is shown under the head of security premium. Further, the Hon'ble Bench also ensure the actual transfer of the said amount of Rs. Rs. 28,00,000/- from security premium reserve account of Transferor Company No. 7 to the security premium reserve account of transferee company i.e. necessary documentary evidence like statement of Bank Account in which the amount of security premium has been kept may be produced before the Hon'ble Bench.

ix) All the transferor companies to preserve its books of accounts, papers and records and shall not dispose them without prior permission of the Central Govt. as per the provisions of the section 239 of the Companies Act, 2013.

x) All the transferor companies to ensure statutory compliance of all applicable laws and also on sanctioning of the scheme, the transferor companies shall not be absolved from any of its statutory liability, in any manner.

xi) The transferee company to undertake the compliance of section 232(3)(i) of the companies Act, 2013.

xii) The transferee company to pay such cost and expenses to the office of the official liquidator for all the transferor companies or any such amount as may be considered appropriate by this Bench.

6. The Income Tax Department filed its report for all the Petitioner Companies on 10.11.2022 which are as follows:

i) The outstanding demand is pending for the Transferor Company No. 4 as under:

A.Y.	Amount	U/s.
2013-14	Rs. 10/-	143(1)(a)
2004-05	Rs. 292/-	143(1)

ii) No other proceedings are pending against the Transferor Company No. 4.

iii) The outstanding demand is pending for the Transferor Company No. 8 is Rs.3960/- and there are no assessement and penalty proceedings are pending for the said company.

iv) There is no demand outstanding and no assessement Proceedings or penalty proceedings pending for the Transferor Company No. 1, 2, 3 & 6.

7. The Petitioner Companies have filed a common affidavit in reply to the observations of Regional Director and ROC. The submission made in above stated replies are as follows:

   i) For differential fees, the transferee company gave undertaking for compliance of section 232(3)(i) of the Companies Act, 2013.

   ii) It is submitted Transferor Company No. 4 do not have any secured creditors as confirmed from Audited Balance Sheet and Chartered Accountant Certificate. The form of satisfaction for the Open Charges on MCA 21 Portal shall be filed on receipt of release deed from the bank. The applicant undertakes to comply with the directions issued by ROC in the matter. The charge in respect of Transferee Company has been created on 06/02/2021 after filing of the first motion application and hence it was stated that the company do not have secured creditors as on the cutoff date. We however, undertake to comply with the directions issued by ROC in the matter.

   iii) It is submitted that in paragraph 2(g) of RD's report, Sub-Claues (1) to (34) refer to various alleged violations of the Companies Act, 2013 by Petitioner Companies. The said matters have been clarified vide our letters to ROC. Copies of letters were annexed with this reply.

   iv) The Petitioner Companies undertakes to comply with the directions, if any, issued by ROC.

   v) The Petitioner Companies have filed form GNL-1 and submitted copies of the scheme, etc. through e-form.

vi) The Petitioner Companies gave undertaking to pay legal fees, as per the order.

8. The Petitioner Companies have filed a separate affidavit in reply to the observations of Official Liquidator. The submission made in above stated replies are as follows:

(i) It is submitted that the transferee company after amalgamation do not propose to carry on activities of all the Transferor Companies, and shall undertake the activities as stated in the main objects of transferee company. However, the transferee company undertakes to make changes in main objects if so directed by the Tribunal.

(ii) The Transferor Company No. 1 has submitted that amount of Rs.24,66,000/- was received by way of subsidy in the year 1997-98 and has been utilized for establishing a manufacturing unit as per policy of state government. As per standard accounting practice subsidy is shown as capital reserve in the financial statements. The subsidy is given only after confirmation of investments made in manufacturing unit and there is no question of non/under utilization of subsidy.

(iii) The Transferor Compony No. 2 has submitted that amount of Rs.22,19,866/- was received by way of subsidy in the year 1999-2000 and has been utilized for establishing a manufacturing unit as per policy of state government. As per standard accounting practice subsidy is shown as capital reserve in the financial statements. The

subsidy is given only after confirmation of investments made in manufacturing unit and there is no question of non/under utilization of subsidy.

(iv) The Transferor Company No. 4 clarified that the secured loans have been repaid and the company do not have any secured creditors. However, the bank releases the charge only when total liability of the group is repaid in full. The Petitioner Company undertakes to file form for satisfaction of charge immediately after release deed is executed by the Bank.

(v) The Transferor Company No. 6 submitted that the security premium of Rs.1,08,40,000/- was received prior to year 2005 whereas, Rs.28,00,000/- was received during the year ended on 31.03.2008. Pursuant to requirements of provisions of Section 52 of the Companies Act, 2013 and relevant provisions of the Companies Act, 1956, the securities premium has been transferred to securities premium account and is shown in the Balance Sheet. The company has not utilized security premium account and undertakes to utilize the same for the purpose allowed by the Companies Act, 2013/1956.

(vi) The Transferor Company No. 1, 2, & 3 submitted that the security premium is in respect of shares allotted at premium during the year 2008-09. Pursuant to requirements of provisions of Section 52 of the Companies Act, 2013 and relevant provisions of the Companies Act, 1956, the securities premium has been transferred to securities

premium account and is shown in the Balance Sheet. The company has not utilized security premium account and undertakes to utilize the same for the purpose allowed by the Companies Act, 2013/1956.

(vii) The Transferor Company No. 7 submitted that the security premium is in respect of shares allotted at premium during the year 2007-08. Pursuant to requirements of provisions of Section 52 of the Companies Act, 2013 and relevant provisions of the Companies Act, 1956, the securities premium has been transferred to securities premium account and is shown in the Balance Sheet. The company has not utilized security premium account and undertakes to utilize the same for the purpose allowed by the Companies Act, 2013/1956.

(viii) All the Transferor Companies undertake to make statutory compliance of all the Applicable Laws.

(ix) All the Transferor Companies undertake to pay the cost to the Official Liquidator as may be directed by the Bench.

(x) All the Transferor Companies undertake to lodge certified copy of order along with scheme with the Superintendents of Stamps for Adjudication of Stamp duty payable.

(xi) All the Petitioner Companies gave undertaking to preserve the books of accounts, papers and records of all the Transferor Companies and not to dispose of the same without prior permission of the Central Govt. as per the provisions of Section 239 of the Companies Act, 2013.

9. All the Petitioner Companies have filed their respective Audited Financial Statements as on 31st March 2020, which are annexed with the petition.

10. As recorded in the order dated 15.07.2022, Ld. Assistant Director, Mr. Rama Ambedkar from the office of Regional Director submits that the Petitioner Companies have filed their undertakings and subject to the undertaking, RD office does not object to approval of this scheme.

11. It is also recorded in the order dated 14.09.2022, that Ld. Deputy Official Liquidator, Mr. Kamlesh Rathod for the Liquidator office stated that they have perused the copy of the undertaking cum affidavit of the Petitioners and subject to the compliances as undertaken, they do not have any objection to approval of the scheme.

12. As per daily order dated 06.03.2023, Ld. Counsel Ms. Pankti Shah for the Income Tax Department stated that the report regarding Petitioner Company Nos. 5 and 8 are still awaited to which Ld. PCS for the Petitioner Companies stated that Transferee Company undertakes to pay resultant demand, if any. Ld. PCS for the Petitioner Companies stated that all pending proceedings can be carried on against the Transferee Company as per the Scheme. Subject to this statement of the Ld. PCS for the Petitioner Companies, Ld. Counsel for the Income Tax Department stated that she has no objection to the approval of the Scheme.

13. In the compliance of order dated 16.03.2023, the Petitioner Companies filed an affidavit on 17.04.2023, about the Schedule of Assets filed in Form No. CAA.7 and Schedule of Assets in the said format is annexed

with this affidavit. Further, it is submitted that the non-applicability of notice to the Competition Commission of India under Section 5 of the Competition Act, 2002 has been clarified in Para 12 on Page 24 of the first motion application. The said paragraph is reproduced below for ready reference:

> *"None of the Applicant Companies are registered with Reserve Bank of India (RBI). None of the shareholders or creditors of the Applicant Companies are non-resident or Foreign National and RBI is not applicable. All the Applicant Companies are unlisted entities and securities and Exchange Board of India (SEBI) Act and Regulation are not applicable. The Applciant Companies do not meet threshold limits relating to assets and turnover as mentioned in the Competition Act, 2002 for the purpose of Combination. No other sectoral regulators is effected by proposed amalgamation."*

Since the above mentioned in first motion application forms part of the record, there was no necessity to issue notice to Competition Commission of India.

14. Heard submissions and perused documents placed on record. We have perused the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and the no objections given by the respective statutory authorities i.e., Official Liquidator, Income Tax

Department and Regional Director. It appears that the requirements of the provisions of section 230 and 232 are satisfied by the petitioner companies. It seems that the proposed Scheme of Merger is bona fide and in the interest of the shareholders and creditors. Therefore, the petition is allowed and the Scheme annexed with the petition at Annexure-A envisaging merger of Rama Crimpers Private Limited, Rama Polysynth Private Limited, Rama Synsilk Private Limited, Jagdish Silk Mills Private Limited, Swati Processors Private Limited, Rama Tradelink Private Limited, Harmony Logistics Private Limited, Sunflower Infrastructure Private Limited, Lifelong Infrastructure Private Limited and Lion Organisers Private Limited with Face Developers Private Limited is hereby sanctioned. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

15. Notwithstanding the above, if any deficiency is found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

16. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of

waiver in respect of any permission / compliance with any other requirement which may be specifically required under any law.

17. **The Scheme is sanctioned with following directions:**

i. The Scheme of Merger as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

ii. It is declared that all the transferor companies shall be dissolved without winding up.

iii. All the properties mentioned in schedule as **"Annexure B"**, rights and powers of all the transferor companies specified in the schedule hereto and all the other properties, rights and powers of all the transferor companies be transferred without any further act or deed to the transferee Company and accordingly the same shall, pursuant to Section 232 of the Act, vest in the transferee company for all the estate and interest of all the transferor companies therein but subject nevertheless to all charges now affecting the same, if any.

iv. Upon the Scheme becoming effective and vesting of assets and liabilities of Transferor Companies in the Transferee Company the shareholders of Transferor Companies shall be, without any further application, issued and allotted Equity Shares of Transferee Company credited as fully paid up to the extent indicated below:

a) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Rama Crimpers Private Limited for 226.60 Equity Shares held in Rama Crimpers Private Limited.*

b) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Rama Polysynth Private Limited for 130.73 Equity Shares held in Rama Polysynth Private Limited.*

c) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Rama Synsilk Mills Private Limited for 377.67 Equity Shares held in Rama Synsilk Mills Private Limited.*

d) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Jagdish Silk Mills Private Limited for 3399 Equity Shares held in Jagdish Silk Mills Private Limited.*

e) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Swati Processors Private Limited for 2353.79 Equity Shares held in Swati Processors Private Limited.*

f) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Rama Tradelink Private Limited for 453.20 Equity Shares held in Rama Tradelink Private Limited.*

g) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Harmony Logistics Private Limited for*

169.95 Equity Shares held in Harmony Logistics Private Limited.

h) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Sunflower Infrastructure Private Limited for 7.7250 Equity Shares held in Sunflower Infrastructure Private Limited.*

i) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Lifelong Infrastructure Private Limited for 6798 Equity Shares held in Lifelong Infrastructure Private Limited.*

j) *01 (One) Equity Share of Rs. 10/- each credited as fully paid-up of Face Developers Private Limited shall be allotted to Shareholders of Lion Organisers Private Limited for 6798 Equity Shares held in Lion Organisers Private Limited.*

The Board of Directors of Transferee Company shall be authorized to determine the matters relating to disposal of fractional entitlement in best interest of shareholders of respective Transferor Companies.

The inter se shareholding among the Transferee Company and Transferor Companies as given below shall be cancelled consequent upon the approval of the scheme.

a) *30000 Equity Shares of Rama Crimpers Private Limited (Transferor Company No. 1) held by Rama Polysynth Private Limited (Transferor Company No. 2).*

b) 145000 Equity Shares of Rama Synsilk Mills Private Limited (Transferor Company No. 3) held by Rama Polysynth Private Limited (Transferor Company No. 2).

c) 101050 Equity Shares of Jagdish Silk Mills Private Limited (Transferor Company No. 4) held by Rama Polysynth Private Limited (Transferor Company No. 2).

d) 220000 Equity Shares of Swati Processors Private Limited (Transferor Company No. 5) held by Rama Polysynth Private Limited (Transferor Company No. 2).

e) 70000 Equity Shares of Rama Tradelink Private Limited (Transferor Company No. 6) held by Rama Polysynth Private Limited (Transferor Company No. 2).

f) 40805 Equity Shares of Rama Crimpers Private Limited (Transferor Company No. 1) held by Rama Synsilk Private Limited (Transferor Company No. 3).

g) 4000 Equity Shares of Rama Polysynth Private Limited (Transferor Company No. 2) held by Rama Synsilk Private Limited (Transferor Company No. 3).

No shares shall be issued to in respect of shares of Transferor Companies held by other Transferor Companies or Transferee Company.

v. All proceedings, if any, now pending or to be initiated, by or against all the transferor companies shall be continued by or against the transferee company.

vi. All workers / employees of all the transferor companies shall be deemed to become the workers /employees of the transferee company with effect from the Appointed Date, and shall stand absorbed in the transferee company in

accordance with the Scheme without any interruption of service and on terms and conditions no less favourable than those on which they are engaged by all the transferor companies, as on the Effective Date.

vii. The Petitioner Companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertaking of all the transferor companies shall stand transferred to the transferee company and the Registrar of Companies shall place all documents relating to all the transferor companies to the file kept by him in relation to the transferee company and the files relating to the said two companies shall be treated accordingly.

viii. All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal who shall issue the certified copy of this order along with the Scheme immediately.

ix. The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of all the transferor companies attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

x. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with E-Form INC-28 in addition to

physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xi. The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/-in respect of all the Petitioner Companies. The said fees to the Regional Director shall be paid by the transferee company.

xii. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of all the Petitioner Transferor Companies. The said fees to the Official Liquidator shall be paid by the Transferee Company.

xiii. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

xiv. The Petition is allowed and disposed of, in terms of above order.

-SD-
AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-SD-
DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

Abhishek Singh-LRA
Swetambary-Steno

Annexure - A

Annexure - F

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NOTARY ASHOK C. PANCHAL ADVOCATE SURAT CITY REG.NO.4530 EXPIRY DATE 1-09-2022 GOVT. OF INDIA

Scheme of Merger of

Rama Crimpers Private Limited	Applicant /Transferor No.1 Company
Rama Polysynth Private Limited	Applicant /Transferor No.2 Company
Rama Synsilk Mills Private Ltd	Applicant/Transferor No.3 Company
Jagdish Silk Mills Private Limited	Applicant /Transferor No.4 Company
Swati Processors Private Limited	Applicant /Transferor No.5 Company
Rama Tradelink Private Limited	Applicant /Transferor No.6 Company
Harmony Logistics Private Ltd	Applicant /Transferor No.7 Company
Sunflower Infrastructure Pvt. Ltd	Applicant /Transferor No.8 Company
Lifelong Infrastructure Private Ltd	Applicant /Transferor No.9 Company
Lion Organisers Private Limited	Applicant /Transferor No.10 Company

With

Face Developers Private Limited	Applicant /Transferee Company

(Pursuant to Sections 230 and 232 of the Companies Act 2013)

PREAMBLE & RATIONALE

Whereas

1 This scheme of Merger (herein after referred to as scheme) provides for merger of Rama Crimpers Private Limited – Transferor No. 1 Company, Rama Polysynth Private Limited - Transferor No. 2 Company, Rama Synsilk Mills Pvt Ltd- Transferor No. 3 Company, Jagdish Silk Mills Private Limited - Transferor No. 4 Company, Swati Processors Private Limited- Transferor No. 5 Company, Rama Tradelink Private Limited -

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ADVOCATE
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Transferor No. 6 Company, Harmony Logistics Private Limited - Transferor No. 7 Company, Sunflower Infrastructure Private Limited - Transferor No. 8 Company, Lifelong Infrastructure Private Limited - Transferor No. 9 Company, Lion Organisers Private Limited - Transferor No. 10 Company with Face Developers Private Limited- Transferee Company pursuant to section 230 and 230(2) of The Companies Act 2013 and other relevant provisions of The Companies Act 2013 and Rules made there under.

2. That the Transferor Number 1, Rama Crimpers Private Limited having Company Identification Number (CIN) U17119GJ1993PTC018908 was incorporated on the 02nd day of February, 1993 under the Companies Act, 1956 in the State of Gujarat. The Registered Office of Transferor No. 1 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. The Permanent Account Number (PAN) of Transferor Number 1 Company under Income tax Act is AABCR1166J. The main objects of Transferor Number 1 Company have been set out in the Memorandum of Association of the said Company.

3. That the Transferor Company Number 2, Rama Polysynth Private Limited having Company Identification Number (CIN) U17119GJ1993PTC019418 was incorporated on the 10th day of May, 1993 under the Companies Act, 1956 in the State of Gujarat. The Registered Office of Transferor No. 2 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. Permanent Account Number (PAN) of Transferor Number 2 company under

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Income Tax Act is AABCR1165M. The main objects of Transferor Number 2 company have been set out in the Memorandum of Association of the said company.

4 That the Transferor Company Number 3, Rama Synsilk Mills Pvt Ltd having Company Identification Number (CIN) U17116GJ1993PTC020089 was incorporated on the 27th day of August, 1993 under the Companies Act, 1956 in the State of Gujarat. The Registered Office of Transferor No. 3 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. Permanent Account Number (PAN) of Transferor Number 3 company under Income Tax Act is AABCR1163P. The main objects of Transferor Number 3 company have been set out in the Memorandum of Association of the said company.

5 That the Transferor Company Number 4, Jagdish Silk Mills Private Limited having Company Identification Number (CIN) U17116GJ1994PTC022390 was incorporated on the 30th day of June, 1994 under the Companies Act, 1956 in the State of Gujarat. The Registered Office of Transferor No. 4 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. Permanent Account Number (PAN) of Transferor Number 4 company under Income Tax Act is AAACJ6018L. The main objects of Transferor Number 4 company have been set out in the Memorandum of Association of the said company.

6 That the Transferor Company Number 5, Swati Processors Private Limited having Company Identification Number (CIN) U17110GJ1996PTC029609 was incorporated on the 14th day of May, 1996 under the Companies Act, 1956 in the State of

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Gujarat. The Registered Office of Transferor No. 5 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. Permanent Account Number (PAN) of Transferor Number 5 company under Income Tax Act is AADCS3286N. The main objects of Transferor Number 5 company have been set out in the Memorandum of Association of the said company.

7 That the Transferor Company Number 6, Rama Tradelink Private Limited having Company Identification Number (CIN) U51909GJ2002PTC040705 was incorporated on the 08th day of May, 2002 under the Companies Act, 1956 in the State of Gujarat. The Registered Office of Transferor No. 6 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. Permanent Account Number (PAN) of Transferor Number 6 company under Income Tax Act is AACCR1658Q. The main objects of Transferor Number 6 company have been set out in the Memorandum of Association of the said company.

8 That the Transferor Company Number 7, Harmony Logistics Private Limited having Company Identification Number (CIN) U63090GJ2005PTC106253 was incorporated on 07th day of October, 2005 under The Companies Act, 1956 in the State of Maharashtra. The Registered office of Transferor No. 7 Company was shifted to the state of Gujarat vide Certification of Registration of Regional Director order for Change of State dated 24/01/2019. The Registered Office of Transferor No. 7 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. Permanent Account Number (PAN) of Transferor Number 7 company under

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Income Tax Act is AABCH6232P. The main objects of Transferor Number 7 company have been set out in the Memorandum of Association of the said company.

9 That the Transferor Company Number 8, Sunflower Infrastructure Private Limited having Company Identification Number (CIN) U45200GJ2010PTC062344 was incorporated on the 18th day of September, 2010 under the Companies Act, 1956 in the State of Gujarat. The Registered Office of Transferor No. 8 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. Permanent Account Number (PAN) of Transferor Number 8 company under Income Tax Act is AAPCS0402G. The main objects of Transferor Number 8 company have been set out in the Memorandum of Association of the said company.

10 That the Transferor Company Number 9, Lifelong Infrastructure Private Limited having Company Identification Number (CIN) U45201GJ2011PTC063873 was incorporated on the 29th day of January, 2011 under the Companies Act, 1956 in the State of Gujarat. The Registered Office of Transferor No. 9 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. Permanent Account Number (PAN) of Transferor Number 9 company under Income Tax Act is AACCL0990R. The main objects of Transferor Number 9 company have been set out in the Memorandum of Association of the said company.

11 That the Transferor Company Number 10, Lion Organisers Private Limited having Company Identification Number (CIN) U45201GJ2011PTC063872 was incorporated on the 29th day of January, 2011 under the Companies Act, 1956 in the State of

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Gujarat. The Registered Office of Transferor No. 10 Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chowk, Surat 395001. Permanent Account Number (PAN) of Transferor Number 10 company under Income Tax Act is AACCL0412C. The main objects of Transferor Number 10 company have been set out in the Memorandum of Association of the said company.

12 That the transferee Company Face Developers Private Limited having Company Identification Number (CIN) CIN: U45201GJ2011PTC063825 was incorporated on 27th January, 2011 under the Companies Act, 1956, in the State of Gujarat. The Registered Office of Transferee Company is presently situated at Plot-65, 1st Floor, Subhash Nagar Society Ghod Dod Road, Nr. Ram Chawk, Surat 395001. The Permanent Account Number (PAN) or Transferee Company under Income Tax Act is AABCF7186Q. The main objects of Transferee Company have been set out in the memorandum of Association of the said company

13 RATIONALE FOR PROPOSED MERGER:

The Scheme of Amalgamation is expected to yield the following benefits.

(i) Enable consolidation of the business of the transferor companies into one entity (Transferee Company) which will facilitate in focused growth, operational efficiencies, business synergies and better supervision of the business of the group.

(ii) Pooling of resources (including manpower, management and administration and marketing resources) of the aforesaid companies resulting in, synergies of operations and

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optimization of logistics, resulting in more productive utilization of said resources, savings in cost and operational efficiencies.

(iii) Strengthening financial position and increased leverage capacity of the merged entity

(iv) Concentrated management focus, improved organizational capacity, integration rationalization and streamlining of the management structure of the merged entity, seamless implementation of policy changes at a higher level from a management perspective and shall also help enhance the efficiency and control of the entities.

(v) Facilitating internal transfer of resources and optimum utilization of assets

(vi) Avoiding duplication of administrative functions, reduction in multiplicity of legal and regulatory compliances

(vii) Enable the creation of a platform for a new business segment and to act as a gateway for growth and expansion of business operations.

PART I - GENERAL

14 DEFINITIONS:

In this scheme, unless inconsistent with or repugnant to the subject of context the following expressions shall have the meaning given to them below :-

a. **"Act" or 'The said Act'** means the Companies Act, 2013 as in force from time to time

b. **"Appointed Date"** means 18th Day of January 2021 being the date from which this Scheme shall become applicable i.e. date with effect from which the transferor companies shall merge with transferee company or any other date which

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Honorable Company Law Tribunal directs or deems fit in the circumstances of case and time taken in the completion of formalities.

c. **"Board"** or **"Board of Directors"** means the board of directors of the Transferor Company or the Transferee Company, as the case may be, and shall, unless it is repugnant to the context or otherwise, include a committee of directors or any person authorized by the board of directors or such committee of directors:

d. **"Effective Date"** means the date or last of the dates on which the certified copies of the orders of the Honourable Company Law Tribunal sanctioning this Scheme is filed with the concerned Registrar of Companies by the Transferor Companies and the Transferee Company.

e. **'Scheme of Merger" or 'Scheme of Amalgamation'** or **"Scheme"** or **"The Scheme"** or **"This Scheme"** means this Scheme of merger in its present form with any modification(s) approved, imposed, or directed by the Tribunal.

f. **'Transferee Company'** means **'FACE DEVELOPERS PRIVATE LIMITED',** a Private limited company incorporated under the Companies Act,1956 on 27th January, 2011 and having CIN U45201GJ2011PTC063825.

g. **'Transferor Company** Number **1"** means **'RAMA CRIMPERS PRIVATE LIMITED',** a company incorporated under the Companies Act, 1956 on 02nd day of February, 1993 and having CIN : U17119GJ1993PTC018908.

h. **'Transferor Company Number 2"** means **'RAMA POLYSYNTH PRIVATE LIMITED',** a company incorporated under the Companies Act,1956 on 10th day of May, 1993 and

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having CIN U17119GJ1993PTC019418.

i. **'Transferor Company Number 3"** means **'RAMA SYNSILK MILLS PVT LTD'**, a company incorporated under the Companies Act,1956 on 27th day of August, 1993 and having CIN U17116GJ1993PTC020089.

j. **'Transferor Company Number 4"** means **'JAGDISH SILK MILLS PRIVATE LIMITED'**, a company incorporated under the Companies Act,1956 on 30th day of June, 1994 and having CIN U17116GJ1994PTC022390.

k. **'Transferor Company Number 5"** means **'SWATI PROCESSORS PRIVATE LIMITED'**, a company incorporated under the Companies Act,1956 on 14th day of May, 1996 and having CIN U17110GJ1996PTC029609.

l. **'Transferor Company Number 6"** means **'RAMA TRADELINK PRIVATE LIMITED'**, a company incorporated under the Companies Act,1956 on 08th day of May, 2002 and having CIN U51909GJ2002PTC040705.

m. **'Transferor Company Number 7"** means **'HARMONY LOGISTICS PRIVATE LIMITED'**, a company incorporated under the Companies Act,1956 on 07th day of October, 2005 and having CIN U63090GJ2005PTC106253.

n. **'Transferor Company Number 8"** means **'SUNFLOWER INFRASTRUCTURE PRIVATE LIMITED'**, a company incorporated under the Companies Act,1956 on 18th day of September, 2010 and having CIN U45200GJ2010PTC062344.

o. **'Transferor Company Number 9"** means **'LIFELONG INFRASTRUCTURE PRIVATE LIMITED'**, a company incorporated under the Companies Act,1956 on 29th day of January, 2011 and having CIN U45201GJ2011PTC063873.

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p. '**Transferor Company Number 10"** means '**LION ORGANISERS PRIVATE LIMITED'**, a company incorporated under the Companies Act,1956 on 29th day of January, 2011 and having CIN U45201GJ2011PTC063872.

q. '**Transferor Companies'** means Transferor Company Number 1,2,3,4,5,6,7,8,9 and 10.

r. **"Tribunal"** means the National Company Law Tribunal **("NCLT") &** the National Company Law Appellate Tribunal **("NCLAT")** as constituted and authorized as per the provisions of the Companies Act, 2013 for approving any scheme of arrangement, compromise or reconstruction of companies under section 230 to 240 of the Companies Act, 2013.

s. '**Undertakings'** shall mean and include

i. All the assets and properties (weather movable or immovable, tangible or intangible) of the Transferor companies as on appointed date (herein after referred to as Assets).

ii. All the debts, liabilities, duties and obligations of the transferor companies as on Appointed date (herein referred to as Liabilities)

iii. Without prejudice to the generality of sub clauses above, the under taking of the transferor companies shall include all the transferor companies reserves, movable and immovable properties , assets including lease hold rights, tenancy rights, industrial and other licenses, permits, authorisations, quota, rights, trademarks, patents and other industrial and intellectual properties, investments in shares debentures and other securities, sundry debtors, cash and Bank, loans and

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Advances, telephones, emails and other communication facilities and equipments, rights and benefits of all agreements and all other interest, rights and powers of every kind. nature and description whatsoever , privileges, liberties, easements, advantages, benefits, approvals.

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning as ascribed to them under the Act and other applicable laws. rules, regulations and byelaws as the case may be. including any statutory modification or re-enactment thereof from time to time

15 **SHARE CAPITAL:**

The Authorised, Issued, Subscribed and paid Up Share Capital of Transferor Number 1 Company (Rama Crimpers Private Limited) as per Audited financial Statements as on 31st March 2020 is as under :

Particulars	Amount Rs.
Authorised Share Capital	
750000 Equity Shares of Rs.10/- each	75,00,000/-
Issued, Subscribed & Paid-up Share Capital	
670000 Equity Shares of RS.10/- each	67,00,000/-

There is no change in above share capital till date of presentation of scheme.

30000 Equity Shares of Transferor No. 1 company are held by Transferor Co. No. 2 and 40805 Equity Shares of Transferor No. 1 Co. are held by Transferor No. 3 Co.

16 The Authorised, Issued, Subscribed and paid Up Share Capital of

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Transferor Number 2 Company (Rama Polysynth Private Limited) as per Audited financial Statements as on 31st March 2020 is as under :

Particulars	Amount Rs.
Authorised Share Capital	
750000 Equity Shares of Rs.10/- each	75,00,000/-
Issued, Subscribed & Paid-up Share Capital	
606000 Equity Shares of RS.10/- each	60,60,000/-

There is no change in above share capital till date of presentation of scheme.

4000 Equity Shares of Transferor No. 2 Co. are held by Transferor No. 3 Co.

17 The Authorised, Issued, Subscribed and paid Up Share Capital of Transferor Number 3 Company (Rama Synsilk Mills Pvt Ltd) as per Audited financial Statements as on 31st March 2020 is as under :

Particulars	Amount Rs.
Authorised Share Capital	
1500000 Equity Shares of Rs.10/- each	1,50,00,000/-
Issued, Subscribed & Paid-up Share Capital	
1240000 Equity Shares of RS.10/- each	1,24,00,000/-

There is no change in above share capital till date of presentation of scheme.

145000 Shares of Transferor No. 3 company are held by Transferor No. 2 Company.

18 The Authorised, Issued, Subscribed and paid Up Share Capital of Transferor Number 4 Company (Jagdish Silk Mills Private

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Limited) as per Audited financial Statements as on 31st March 2020 is as under :

Particulars	Amount Rs.
Authorised Share Capital	
500000 Equity Shares of Rs.10/- each	50,00,000/-
Issued, Subscribed & Paid-up Share Capital	
362200 Equity Shares of RS.10/- each	36,22,000/-

There is No change in above share capital till date of presentation of scheme.

101050 Equity Shares of Transferor No. 4 Co. are held by Transferor No. 3 Co.

19 The Authorised, Issued, Subscribed and paid Up Share Capital of Transferor Number 5 Company (Swati Processors Private Limited) as per Audited financial Statements as on 31st March 2020 is as under :

Particulars	Amount Rs.
Authorised Share Capital	
500000 Equity Shares of Rs.10/- each	50,00,000/-
Issued, Subscribed & Paid-up Share Capital	
250020 Equity Shares of RS.10/- each	25,00,200/-

There is no change in above share capital till date of presentation of scheme.

220000 Shares of Transferor No. 5 company are held by Transferor No. 2 Company.

20 The Authorised, Issued, Subscribed and paid Up Share Capital of Transferor Number 6 Company (Rama Tradelink Private Limited) as per Audited financial Statements as on 31st March 2020 is as

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under :

Particulars	Amount Rs.
Authorised Share Capital	
1250000 Equity Shares of Rs.10/- each	1,25,00,000/-
Issued, Subscribed & Paid-up Share Capital	
1091000 Equity Shares of RS.10/- each	1,09,10,000/-

There is no change in above share capital till date of presentation of scheme.

70000 Shares of Transferor No. 6 company are held by Transferor No. 2 Company.

21 The Authorised, Issued, Subscribed and paid Up Share Capital of Transferor Number 7 Company (Harmony Logistics Private Limited) as per Audited financial Statements as on 31st March 2020 is as under :

Particulars	Amount Rs.
Authorised Share Capital	
500000 Equity Shares of Rs.10/- each	50,00,000/-
Issued, Subscribed & Paid-up Share Capital	
80000 Equity Shares of RS.10/- each	8,00,000/-

There is no change in above share capital till date of presentation of scheme.

No Shares of Transferor No. 7 company are held by other Transferor Companies and Transferee Company.

22 The Authorised, Issued, Subscribed and paid Up Share Capital of Transferor Number 8 Company (Sunflower Infrastructure Private Limited) as per Audited financial Statements as on 31st March 2020 is as under :

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Particulars	Amount Rs.
Authorised Share Capital	
50000 Equity Shares of Rs.10/- each	5,00,000/-
Issued, Subscribed & Paid-up Share Capital	
10000 Equity Shares of RS.10/- each	1,00,000/-

There is no change in above share capital till date of presentation of scheme.

No Shares of Transferor No. 8 company are held by other Transferor Companies and Transferee Company.

23 The Authorised, Issued, Subscribed and paid Up Share Capital of Transferor Number 9 Company (Lifelong Infrastructure Private Limited) as per Audited financial Statements as on 31st March 2020 is as under :

Particulars	Amount Rs.
Authorised Share Capital	
10000 Equity Shares of Rs.10/- each	1,00,000/-
Issued, Subscribed & Paid-up Share Capital	
10000 Equity Shares of RS.10/- each	1,00,000/-

There is no change in above share capital till date of presentation of scheme.

No Shares of Transferor No. 9 company are held by other Transferor Companies and Transferee Company.

24 The Authorised, Issued, Subscribed and paid Up Share Capital of Transferor Number 10 Company (Lion Organisers Private Limited) as per Audited financial Statements as on 31st March 2020 is as under :

Particulars	Amount Rs.

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Authorised Share Capital	
10000 Equity Shares of Rs.10/- each	1,00,000/-
Issued, Subscribed & Paid-up Share Capital	
10000 Equity Shares of RS.10/- each	1,00,000/-

There is no change in above share capital till date of presentation of scheme.

No Shares of Transferor No. 10 company are held by other Transferor Companies and Transferee Company.

25 The Authorised, Issued, Subscribed and paid Up Share Capital of Transferee Company (Face Developers Private Limited) as per Audited financial Statements as on 31st March 2020 is as under :

Particulars	**Amount Rs.**
Authorised Share Capital	
10000 Equity Shares of Rs.10/- each	1,00,000/-
Issued, Subscribed & Paid-up Share Capital	
10000 Equity Shares of RS.10/- each	1,00,000/-

There is no change in above share capital till date of presentation of scheme.

No Shares of Transferee company are held by any Transferor Companies.

PART II

26 TRANSFER OF UNDERTAKING

Upon coming into effect this scheme for Appointed Date and pursuant to provisions of the Act and subject to provisions of this scheme :-

a. All the 'Undertakings' of The transferor Companies shall

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without and further act, instrument or deed stand transferred to and vested in and/or deemed to have been transferred and vested in the transferee company as going concern so as to become the estate, right, title and interest and authorities of the transferee company provided always that the scheme shall not operate to enlarge the security for any loan, deposit or facility created by or available to the transferor companies which shall vest with the transferee company by virtue of the merger and the transferee company shall not be obliged to create any further or additional security and shall after merger has become effective or otherwise.

b. All the liabilities shall without any further act or instrument or deed be and stand transferred to the transferee company so as to become as form date of appointed date the debts, liabilities, duties and obligations of the transferee company.

c. Subject to such other clauses of the scheme, all loans raised and utilised and all debts, duties, undertakings, liabilities and obligations incurred or undertaken by the transferor companies in relation to or in connection with the undertaking after the appointed date and prior to effective date shall be deemed to have been raised, used, incurred or undertaken for and on behalf of the transferee company and to the extent they are outstanding on the effective date shall upon the coming into effect this scheme, pursuant to the provisions of the Act without any further act, instrument or deed be and stand transferred to or vested in or deemed to have been transferred or vested in the transferee company and shall become debt, duties, undertaking, liabilities and obligations of the transferee company with shall meet, discharge and

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satisfy the same.

d. Subject to such other clauses of the scheme, all estate, assets, rights, title, interest, authorisation accrued to and/or acquired by the transferor companies in relation to or in connection with the undertaking after the Appointed date and prior to the Effective date shall have been deemed to have been accrued to and/or acquired for and on behalf of the transferee company and shall upon coming into effect this scheme pursuant to the provisions of The Act without any further act, instrument of deed be and stand transferred or vested in or be deemed to have been transferred or vested in the transferee company to that extent and shall become the estate, asset, right, title, interest and authorization of the transferee company.

e. With affect form the appointed date and subject to any corrections and adjustments as may in the opinion of the Board of Directors of the transferee company be required, the reserves of the transferor companies will be amalgamated with those of transferee company in same forms as they appeared in the financial statements of the transferor company.

f. The transferee company shall adjust the balance of profit and loss account of the transferor companies against its profit and loss account. The unabsorbed depreciation and business losses of the transferor companies would be deemed to be the unabsorbed depreciation and business losses of the transferee company.

g. In case of any difference in accounting policy between the

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transferor companies and the transferee company, the impact of the same till the amalgamation will be quantified and adjusted in the general reserve to ensure that the financial statement of the transferee company reflects the position on the basis of consistent accounting policy.

h. All assets and liabilities including reserves of the transferor companies transferred to transferee company under the scheme shall be recorded in the books of the transferee company at the book value recorded in the transferor company's books of accounts.

i. The transfer and vesting of the undertakings of the transferor companies under the above mentioned clauses and the continuance of the proceedings by the transferee company under this scheme hereof shall not affect any transaction or proceeding already concluded by the transferor companies in ordinary course of business on and after appointed date to the end and intent that the Transferee Company accepts on behalf of itself as acts, deeds, and things done and executed and all transactions or proceedings already concluded by the Transferor Companies.

j. The transferee company shall make suitable alterations to its Memorandum of Association and Articles of Association if necessary for proper implementation of the scheme.

k The reserves created as a result of scheme of amalgamation being approved shall be transferred to "Capital reserves" to be utilised as per accounting standards issued by the Institute of Chartered Accountants of India for 'Capital Reserves'. The accounting treatment shall be in compliance

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with Applicable Accounting Standards specified under Section 133 of The Companies Act 2013 read with Company Accounts (Rules) 2014.

l. On scheme becoming effective, the transferee company shall be entitled to revise its income tax returns and also income tax returns filed by Transferor Companies in so far it is necessitated on account of scheme becoming effective with effect from 18th day of January 2021, being the Appointed date under the scheme.

27 CONTRACTS, DEEDS, BONDS,OTHER INSTRUMETS AND BENEFITS OR PREVILIDGES

a. Upon coming into effect of this scheme all contracts, deeds, bonds, agreements, arrangements and other instruments (including all tenancies, leases, licences and other assurances or powers or authorities granted in favour of transferor companies) to which transferor companies are parties or to the benefit of which the transferor companies may be eligible and instrument or deed, shall be in full force and the effect against or in favour of the Transferee company, as the case may be and may be enforced as fully and effectively as if, instead of transferor companies, the transferee company had been a party or beneficiary or oblige thereto. The transferee company shall at any time prior to the effective date wherever necessary enter into and/or issue and/or execute deeds, writings, confirmations any triparty agreements or notations to which the transferor companies will if necessary also be a party in order to give formal effect to the provisions of this clause. All the leases and tenancies made by the transferor companies with respect to its lands,

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plant and machinery etc. to the third parties shall not determine or terminated by the fact that after amalgamation between the transferor and transferee companies, the transferee company has stepped into the shoes of the transferor companies and no third party interest in such leases and tenancies shall be extinguished.

b. Any inter se contract between the transferor companies and the transferee company shall stand adjusted and vest in the transferee company upon the sanction of the scheme and upon the scheme becoming effective. The share capital in the transferor companies held by the transferee company and vice –versa if any shall accordingly stand cancelled.

c. The transferee company may, at any time after the coming into effect of this scheme in accordance with the provisions hereof, if so required, under any law or otherwise, enter into, or issue or execute deeds, writings, confirmations, notations, declarations, or other documents with, or in favour of any party to any contract or arrangement to which the transferor companies where a party or any writing as may be necessary to be executed in order to give formal effect to the contract or arrangement.

d. All the licenses, permits, quotas, approvals, permissions, incentives, sales tax deferrals, loans, subsidies, concessions, grants, rights, claims, leases, tenancy right, liberties, special status and other benefits or privileges enjoyed or conferred upon or held or availed of by and all rights and benefits that have accrued or which may accrue to the transferor companies, shall, pursuant to the provisions of the act, without any further act or deeds, be transferred to and vested

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in and/or be deemed to have been transferred to and vested in and be available to the transferee company so as to become as and from the appointed date, the licenses, permits, quotas, approval, permission, incentive, sales tax deferrals, loans, subsidies, concessions, grants, rights, claims, leases, tenancy rights, liberties, special status and other benefits or privileges of the transferee company and shall remain valid, effective and enforceable as on the same terms and conditions to the extent permissible under law.

e. All benefits / refunds / credits under income tax act, excise (including Modvat / Cenvat), Sales tax (including deferment of sales tax), Value added tax and Service Tax, Goods and Service Tax etc. to which transferor companies is/ are entitled to in terms of the various statutes and /or schemes of Union and state Governments, shall be available to and vest in the transferee company, without any further act or deed. Further the transferee company is also permitted to revise income tax returns and related TDS Certificates.

f. As a consequence of the amalgamation of the Transferor Companies with the Transferee Company in accordance with this Scheme, the recording of change in name from the Transferor Companies to the Transferee Company, whether for the purposes of any licence, permit, approval or any other reason, or whether for the purposes of any transfer, registration, mutation or any other reason, shall be carried out by the concerned statutory or regulatory or any other authority without the requirement of payment of any transfer or registration fee or any other charge or imposition whatsoever.

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28 TRANSFEROR COMPANY'S STAFF, WORKMEN AND EMPLOYEES:

All the staff, workmen and other employees in the service of the transferor companies as on the effective date, shall on and from the effective date become the staff, workmen and employees of the transferee company on the basis that:-

a. Their services shall have been continuous and shall not have been interrupted by reason of the transfer of undertakings and that the terms and conditions of service applicable to the said staff, workmen or employees on the effective date as aforesaid shall not in any way be less favourable to them than those applicable to those applicable to them immediately before the effective date; and

b. It is expressly provided that as far as Provident fund, Gratuity fund, Superannuation fund, or any other special fund/trust, if any, created or existing for the benefit to the staff, workmen and other employees of the Transferor Companies for all purposes whatsoever related to the administration or operation of such Funds or in relation to the obligation to make contributions to the said Funds in accordance with provisions of such Funds as per the terms provided in the respective Trust Deeds. It is the aim and intent that all the rights, duties, powers and obligations of the Transferor Companies in relation to such funds/Trusts shall become those of the Transferee Company and all the rights, duties and benefits of the employees employed in Transferor Companies under such Funds and Trusts shall be protected. It is further clarified that the services of the employees of the Transferor Companies will also be treated as having been

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continuous for the purpose of the aforesaid Funds/Trusts.

29 LEGAL PROCEEDINGS:

If any suit, writ petition, appeal, revision or other proceedings of whatever nature (hereinafter called "the proceedings") by or against the Transferor Companies be pending, the same shall not abate, be discontinued or be in any way prejudicially affected by reason of the Transfer of the undertakings of the Transferor Companies or of anything contained in the scheme, but the proceedings may be continued, prosecuted and enforced by or against the Transferor Companies as if the scheme had not been made. On and from the Effective Date, the Transferee Company shall and may, if required, initiate any legal proceedings for and on behalf of the Transferor Companies.

30 OPERATIVE DATE OF THE SCHEME:

The scheme, although operative from the Appointed date, shall become effective from the effective date.

31 DISSOLUTION OF TRANSFEROR COMPANIES

All the Transferor Companies shall stand dissolved w.e.f. Effective Date without the process of winding up.

32 CONDUCT OF BUSINESS BY TRANSFEROR COMPANIES TILL EFFECTIVE DATE:

With effect from the Appointed Date and up to and including the Effective Date, the Transferor Companies:

a Shall carry on and be deemed to carry on all its business and activities and stand possessed of its properties and assets for and on account of and in trust for the Transferee Company and all the Profits or incomes accruing or arising to the Transferor Companies, or expenditure or losses arising

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or incurred (including the effect of taxes, if any, thereon)by the Transferor Companies shall, for all purposes, be treated and be deemed to be and accrue as the profits or income or expenditure or losses or taxes of the Transferee Company, as the case may be (it is clarified that nay advance Tax paid/ TDS Certificates received by the Transferor Companies be treated and be deemed to be and accrue as taxes paid by the transferee Company)

b Hereby undertakes to carry on its businesses with reasonable diligence and shall not, without the written consent of the Transferee Company, alienate charge or otherwise deal with the undertakings or any part thereof except in the ordinary course of their business.

c Shall discharge all their liabilities and obligations for and on account of the Transferee Company.

d Shall not vary the terms and conditions of the employment of its employees except in the ordinary course of business.

33 AUTHORISED SHARE CAPITAL

a Upon the Scheme becoming fully effective, the authorised share capital of the Transferor Companies shall stand combined with the authorised share capital of the Transferee Company. Filing fees and stamp duty, if any, paid by the Transferor Companies on their respective authorised share capital, shall be deemed to have been so paid by the Transferee Company on the combined authorised share capital and accordingly, the Transferee Company shall not be required to pay any feel stamp duty for its increased authorised share capital. The differential fees payable on the

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increased authorised capital of the transferee company consequent on sanctioning of the scheme after setting of fees paid by the transferor companies shall be paid by the transferee company.

b Clause V of the Memorandum of Association of the Transferee Company shall, without any further act, instrument or deed, be and stand altered, modified and amended under applicable provisions of the Act by deleting the existing Clause and replacing it by the following:

V. The Authorised Share Capital of the Company is Rs. 5,83,00,000/- (Rupees Five Crore Eighty Three Lacs) divided into 5830000 (Fifty Eight Lac Thirty Thousand) equity shares of Rs.10/- (Rupee Ten) each with power to increase or reduce the capital and with liberty to divide the capital into several classes and to attach thereto respectively such preferential rights, privileges, or conditions in such manner as may be permitted by the Companies Act and as the company deems fit and necessary."

c The approval of this Scheme under Sections 231 and 232 of the Companies Act, 2013 shall be deemed to have the approval under Section 13, 14, 61 & 62 and other applicable provisions of the Companies Act 2013 and any other consents and approvals required in this regard.

34 ISSUE OF SHARES AND TREATMENT OF INTER COMPANY SHAREHOLDING.

Upon scheme becoming effective and vesting of assets and

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liabilities of Transferor Companies in the Transferee Company the shareholders of Transferor Companies shall be without any further application be issued and allotted Equity Shares of Transferee Company credited as fully paid up to the extent indicated below.

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Rama Crimpers Private Limited for 226.60 Equity Shares held in Rama Crimpers Private Limited.

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Rama Polysynth Private Limited for 130.73 Equity Shares held in Rama Polysynth Private Limited.

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Rama Synsilk Mills Pvt Ltd for 377.67 Equity Shares held in Rama Synsilk Mills Pvt Ltd.

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Jagdish Silk Mills Private Limited for 3399 Equity Shares held in Jagdish Silk Mills Private Limited.

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Swati Processors Private Limited for 2353.79 Equity Shares held in Swati Processors Private Limited.

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Rama Tradelink Private Limited for 453.20 Equity Shares held

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in Rama Tradelink Private Limited.

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Harmony Logistics Private Limited for 169.95 Equity Shares held in Harmony Logistics Private Limited.

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Sunflower Infrastructure Private Limited for 7.7250 Equity Shares held in Sunflower Infrastructure Private Limited.

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Lifelong Infrastructure Private Limited for 6798 Equity Shares held in Lifelong Infrastructure Private Limited

1(One) Equity Share of Rs. 10/- each credited as fully paid up of Face Developers Private Limited shall be allotted to Shareholders of Lion Organisers Private Limited for 6798 Equity Shares held in Lion Organisers Private Limited.

The Board of directors of Transferee Company shall be authorized to determine the matters relating to disposal of fractional entitlement in best interest of Shareholders of respective Transferor Companies.

The inter se shareholding among the Transferee Company and Transferor Companies as given below shall be cancelled consequent upon the approval of the scheme.

a 30000 Equity Shares of Rama Crimpers Private Limited (Transferor No. 1 Company) held by Rama Polysynth Private Limited (Transferor No. 2 Company).

b 145000 Equity Shares of Rama Synsilk Mills Pvt Ltd.

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(Transferor No. 3 Company) held by Rama Polysynth Private Limited (Transferor No. 2 Company).

c 101050 Equity Shares of Jagdish Silk Mills Private Limited (Transferor No. 5 Company) held by Rama Polysynth Private Limited (Transferor No. 2 Company).

d 220000 Equity Shares of Swati Processors Private Limited (Transferor No. 5 Company) held by Rama Polysynth Private Limited (Transferor No. 2 Company).

e 70000 Equity Shares of Rama Tradelink Private Limited (Transferor No. 6 Company) held by Rama Polysynth Private Limited (Transferor No. 2 Company).

F 40805 Equity Shares of Rama Crimpers Private Limited (Transferor No. 1 Company) held by Rama Synsilk Private Limited (Transferor No. 3 Company).

g 4000 Equity Shares of Rama Polysynth Private Limited (Transferor No. 2 Company) held by Rama Synsilk Private Limited (Transferor No. 3 Company).

No shares shall be issued to in respect of shares of Transferor Companies held by other Transferor Companies or Transferee Company.

35 ACCOUNTING TREATMENT :

Upon the Scheme becoming effective, the amalgamation of the Transferor Companies with the Transferee Company would follow **'pooling of interest/amalgamation in the nature of merger'** method as prescribed in the Accounting Standard 14: 'Accounting for Amalgamations' as per provisions of Section 133 of the Companies Act, 2013, such that:-

a The Transferee Company shall, upon the Scheme coming

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into effect, record the assets and liabilities of the Transferor Companies vested in it pursuant to this Scheme at the respective book values thereof and in the same form as appearing in the books of the Transferor Companies at the close of business of the day immediately preceding the Appointed Date.

b The Transferee Company shall record the security premium, general reserves and the capital reserves, if any, of the Transferor Companies in the same form and at the same values as they appear in the financial statements of the Transferor Companies at the close of business of the day immediately preceding the Appointed Date. The surplus balance in the Statement of Profit and Loss of the Transferor Companies shall be similarly aggregated with the surplus balances in statement of Profit and Loss of the Transferee Company.

c The accumulated losses/ deficit in the Statement of Profit and Loss of the Transferor Companies shall be shown as goodwill in the books of the Transferee Company

d The difference, if any, between the investment of the Transferee Company and the amount of share capital of the Transferor Companies shall be adjusted in the Reserves of the Transferee Company

e To the extent there are inter-corporate loans or balances between the transferor Companies and the Transferee Company, the obligations in respect thereof shall come to an end and corresponding effect shall be given in the books of accounts and records of the Transferee Company for the

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reduction of any assets or liabilities, as the case may be.

f This scheme has been drawn up to comply with the conditions relating to "Amalgamation" as specified under section 2(1B) of the Income Tax Act, 1961 and other applicable provisions , if any, terms or provisions of the scheme is/are inconsistent with the provisions of the Income Tax Act, 1961, the Provisions of the Income Tax Act, 1961 shall prevail and the scheme shall stand modified to the extent necessary to comply with section 2(1B) of the Income Tax Act, 1961 and other applicable provisions , if any.

36 DIVIDENDS , PROFITS, BONUS/RIGHT SHARES:

a Subject to the provisions of this scheme, the profits or losses of the Transferor Companies for the period beginning Appointed date shall be deemed to belong to and be the profits or losses of the Transferee Company and will be available to the Transferee Company for being dealt with/ disposed of in any manner as it thinks fit including declaration of dividend, issue of Bonus Shares, or for the purpose of issue of right shares by the Transferee Company.

b It is further provided that scheme upon coming into effect, the amount of balance lying to the debit of the Profit and Loss Account as represented/shown in the Balance Sheet of the Transferor Companies shall be aggregated by the Transferee Company with similar amounts lying in its own Profit and Loss account as if the same as created by the Transferee Company out of its own funds.

c The opening Balance Sheet shall constitute the restructured Balance Sheet of the Transferee Company as on the

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appointed date.

PART IV — GENERAL TERMS AND CONDITIONS

37 APPLICATION TO TRIBUNAL

The Transferor Companies and The Transferee Company shall, with reasonable efforts make necessary application(s) jointly or separately to National Company Law Tribunal for sanctioning and carrying out of the Scheme and for dissolution of The Transferor Companies without winding up under the Provisions of the Law and to obtain all approvals as may be required.

38 MODIFICATIONS / AMENDMENTS TO THE SCHEME

a The Transferor Companies and the Transferee Company through their respective Boards of Directors including Committees of Directors or other persons, duly authorised by the respective Boards in this regard, may make, or assent to, any alteration or modification to this Scheme or to any conditions or limitations, which the Court or any other Competent Authority may deem fit to direct, approve or impose and may give such directions including an order of dissolution of the Transferor Companies without process of winding up as they may consider necessary, to settle any doubt, question or difficulty, arising under the scheme or in regard to its implementation or in any manner connected therewith and to do and to execute all such acts, deeds, matters and things necessary for putting this Scheme into effect, or to review the portion relating to the satisfaction of the conditions to this scheme and if necessary, to waive any of those (to the extent permitted under law) for bringing this scheme into effect.

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b If any part or provision of this Scheme if found to be unworkable for any reason whatsoever, the same shall not, subject to the decision of the Transferor Companies and the Transferee Company, affect the validity of implementation of the other parts and/or provisions of the Scheme. If any Part or provision of this Scheme hereof is invalid, ruled illegal by any Court of competent jurisdiction, or unenforceable under present or future laws, then it is the intention of the Transferor Companies and the Transferee Company that such Part or provision, as the case may be, shall be severable from the remainder of the Scheme, and the Scheme shall not be affected thereby, unless the deletion of such Part or provision, as the case may be, shall cause this Scheme to become materially adverse to the Transferor Companies and the Transferee Company, in which case the Transferor Companies and the Transferee Company shall attempt to bring about a modification in the Scheme, as will best preserve for the Transferor Companies and the Transferee Company the benefits and obligations of the Scheme, including but not limited to such Part or provision.

39 SCHEME CONDITIONAL ON APPROVALS/ SANCTIONS

This Scheme is conditional upon the following approvals/events and the Scheme shall be deemed to be effective on obtaining last of the following approvals and the occurrence of the last of the following events.

a The approval of the scheme by the requisite majority of the members and creditors of the Transferor Companies and the Transferee Company, as the case may be as required under section 230 of the said Act.

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b The sanction of the scheme by the National Company Law Tribunal, Ahmedabad Bench under section 230 read with section 232 of the said Act and other applicable provisions of the said Act. rules and regulations, as the case may be.

c Certified copies of the National Company Law Tribunal orders being filed with the Registrar of Companies, NCLT Ahmedabad.

d Such other sanctions and approvals including sanctions of any Governmental or Regulatory Authority, as may be required by law in respect of the scheme.

40 EXPENSES CONNECTED WITH THE SCHEME:

All costs, charges and expenses of the Transferor Companies and the Transferee Company respectively in relation to or in connection with the Scheme and of carrying out and implementing/completing the terms and provisions of the Scheme and/or incidental to the completion of amalgamation of the said undertaking of the Transferor Companies in pursuance of the Scheme shall be borne and paid solely by the Transferee Company.

41 EFFECT OF NON-RECEIPT OF APPROVALS:

In case the scheme is not sanctioned by the National Company Law Tribunal or in case any of the consents, approvals, permissions, resolutions, agreements, sanctions or conditions enumerated in the Scheme not being obtained or complied or for any other reason the scheme cannot be implemented by such date as may be agreed by the Board of Directors of Transferor Companies and Transferee Company, the Scheme shall become null and void, and in that event no rights and liabilities whatsoever

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shall accrue to or be incurred to or be incurred inter-se by the parties or their shareholders or creditors or employees or any other person. In such a case each Company shall bear its own cost, charges and expenses in connection with the scheme unless otherwise mutually agreed.

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Annexure – B

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Schedule to form CAA.7

[Pursuant to Section 232 and Rule 20]

First Part

[insert a short description of freehold property of transferor companies as on 18.01.2021 and owned by company as on filing of this statement]

Sr.	Description	Book Value (Rs.)	Situation	No. of Transferor company
1	Flat at Gandhinagar	6643000.00	Gujarat	T-1
2	Other fixed Assets - Computer, Leggis Machine weighing scale	72569.00	N.A	T-5
3	Other fixed Assets – Air Condition, computer, office equipments	65499.00	N.A	T-8

Second Part

[insert a short description of lease hold property of transferor companies

Nil

Third Part

[insert a short description of all stocks, shares, debentures and other charges in action of transferor companies]

Sr.	Description	Book Value in INR as on18.01.2021 (Appointed Date)	No. of Transferor company
1	Bank of Baroda A/c 09130200000959	23228.05	T-1
2	Bank of Baroda A/c 09130200000957	24343.14	T-2
3	Bank of Baroda A/c 09130200000958	22506.55	T-3
4	Kotak Mahindra Bank A/c 510011022699	2571.24	T-4
5	Bank of Baroda A/c No. 09130200000955	30767.75	T-5
6	Bank of Baroda fixed Deposit	314399.00	T-5

Ashokkumar Kejriwal

Director / Authorised Representative of Applicant Companies

7	Bank of Baroda A/c No. 09130200002367	23261.57	T-6
8	Bank of Baroda – fixed Deposit	1499835.00	T-6
9	Bank of Baroda A/c No. 09130200002047	21555.45	T-7
10	HDFC Bank Acc. No. 01102300000535	26118.22	T-7
11	Bank of Baroda A/c No. 09130200001649	24367.25	T-8
12	Bank of Baroda A/c No. 09130200001729	23472.45	T-9
13	Bank of Baroda A/c No. 09130200001788	23862.45	T-10
14	Cash in Hand	96478.25	T-1
15	Cash in Hand	13865.95	T-2
16	Cash in Hand	64838.25	T-3
17	Cash in Hand	746333.00	T-4
18	Cash in Hand	72569.00	T-5
19	Cash in Hand	211423.00	T-6
20	Cash in Hand	137877.00	T-7
21	Cash in Hand	10949.00	T-8
22	Cash in Hand	11150.00	T-9
23	Cash in Hand	10830.00	T-10
24	Investment in Shares	12677600.00	T-1
25	Investment in Shares	7275300.00	T-2
26	Investment in Shares	14983600.00	T-3
27	Investment in Shares	30000.00	T-4
28	Investment in Shares	12900000.00	T-5
29	Investment in Shares	5200000.00	T-6
30	Advance for Land	8253370.00	T-2
31	Advance for Land	6710000.00	T-6
32	Advance for Land	3100000.00	T-7
33	Loans and Advances	1817500.00	T-8
34	Loans and Advances	14255468.00	T-9
35	Loans and Advances	2376200.00	T-10
36	Advance for capital Goods	4130000.00	T-10

Note

1. Investment in Shares excludes investment in Companies under Amalgamation.

2. Actual transfer of Assets Shall be as per Status on effective date.

NOTARY
NAVNITBHAI A. PATEL
SURAT DIST. (GUJ.)
Reg.No.5820

Ashokkumar Kejriwal
Director / Authorised Representative of Applicant Companies